

Court No. - 21

Case :- WRIT - C No. - 16127 of 2023

Petitioner :- M/S Hotel Pride Inn

Respondent :- Purvanchal Vidhut Vitrana Nigam Ltd. And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. Shri N.K. Tiwari, learned counsel for the respondent-Electricity Department prays for and is granted time to obtain instructions.
2. Put up as fresh on 22.05.2023.
3. In the meantime, no coercive measure shall be taken against the petitioner in pursuance of the notice dated 23.01.2023.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 12.5.2023

Rama Kant

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Counsel for Respondent :- Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Prashant Kumar,J.

1. The instant petition has been filed praying for the following reliefs: -

"1) Issue writ, order or direction in the nature of mandamus commanding respondent no. 2 to install check meter and bill for the preceding three months may be revised on the result of check meter as per the provision of Clause 5.6(b)(ii) & 5.7(d) of U.P. Electricity Supply Code, 2005.

2) Issue writ, order or direction in the nature of prohibition restraining respondent no. 2 from adding the amount of Rs. 2,02,581/- in the regular bill of petitioner arising out of notice dated 23.01.23 (Annexure-1)."

2. After hearing counsel for the petitioner at length, we find that the petitioner is disputing the correctness of the bill issued to it by the respondent-Electricity Department for the period between 22.7.2022 to 12.1.2022, based on MRI readings, as certain tampering was found in the apparatus installed at its premises.

3. We are of the opinion that the petitioner has efficacious alternative remedy of filing objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and therefore, we decline to examine the issue in exercise of writ jurisdiction.

4. The petition is disposed of with the aforesaid liberty reserved in favour of the petitioner.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 22.5.2023

Jaideep/-